

HOUSE No. 1588**The Commonwealth of Massachusetts**

PRESENTED BY:

Christine P. Barber and David M. Rogers*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to immigration detention and collaboration agreements.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Christine P. Barber</i>	<i>34th Middlesex</i>	<i>1/17/2025</i>
<i>David M. Rogers</i>	<i>24th Middlesex</i>	<i>1/17/2025</i>
<i>Steven Owens</i>	<i>29th Middlesex</i>	<i>1/30/2025</i>
<i>Mindy Domb</i>	<i>3rd Hampshire</i>	<i>1/30/2025</i>
<i>Tram T. Nguyen</i>	<i>18th Essex</i>	<i>1/30/2025</i>
<i>Antonio F. D. Cabral</i>	<i>13th Bristol</i>	<i>1/22/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>1/30/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>1/30/2025</i>
<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>1/30/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>1/30/2025</i>
<i>Erika Uyterhoeven</i>	<i>27th Middlesex</i>	<i>1/30/2025</i>
<i>David Paul Linsky</i>	<i>5th Middlesex</i>	<i>1/30/2025</i>
<i>John Francis Moran</i>	<i>9th Suffolk</i>	<i>1/30/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>1/30/2025</i>
<i>Rebecca L. Rausch</i>	<i>Norfolk, Worcester and Middlesex</i>	<i>1/30/2025</i>
<i>Patricia A. Duffy</i>	<i>5th Hampden</i>	<i>1/30/2025</i>
<i>Sean Reid</i>	<i>11th Essex</i>	<i>1/30/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>3/12/2025</i>

<i>Jennifer Balinsky Armini</i>	<i>8th Essex</i>	<i>4/7/2025</i>
<i>John Barrett, III</i>	<i>1st Berkshire</i>	<i>5/21/2025</i>
<i>Natalie M. Blais</i>	<i>1st Franklin</i>	<i>4/5/2025</i>
<i>Michelle L. Ciccolo</i>	<i>15th Middlesex</i>	<i>5/15/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>2/19/2025</i>
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>2/26/2025</i>
<i>Leigh Davis</i>	<i>3rd Berkshire</i>	<i>3/19/2025</i>
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>2/14/2025</i>
<i>Kate Donaghue</i>	<i>19th Worcester</i>	<i>11/13/2025</i>
<i>Daniel M. Donahue</i>	<i>16th Worcester</i>	<i>10/16/2025</i>
<i>Paul J. Donato</i>	<i>35th Middlesex</i>	<i>4/15/2025</i>
<i>Michelle M. DuBois</i>	<i>10th Plymouth</i>	<i>4/16/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/7/2025</i>
<i>Rodney M. Elliott</i>	<i>16th Middlesex</i>	<i>1/10/2026</i>
<i>Tricia Farley-Bouvier</i>	<i>2nd Berkshire</i>	<i>3/28/2025</i>
<i>Sean Garballey</i>	<i>23rd Middlesex</i>	<i>3/19/2025</i>
<i>Jessica Ann Giannino</i>	<i>16th Suffolk</i>	<i>6/12/2025</i>
<i>Homar Gómez</i>	<i>2nd Hampshire</i>	<i>4/7/2025</i>
<i>Carlos González</i>	<i>10th Hampden</i>	<i>1/30/2025</i>
<i>Kenneth I. Gordon</i>	<i>21st Middlesex</i>	<i>1/21/2026</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>2/11/2025</i>
<i>Christopher Hendricks</i>	<i>11th Bristol</i>	<i>6/9/2025</i>
<i>Kevin G. Honan</i>	<i>17th Suffolk</i>	<i>5/13/2025</i>
<i>Tara T. Hong</i>	<i>18th Middlesex</i>	<i>3/11/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>6/27/2025</i>
<i>Kristin E. Kassner</i>	<i>2nd Essex</i>	<i>12/17/2025</i>
<i>Mary S. Keefe</i>	<i>15th Worcester</i>	<i>3/4/2025</i>
<i>Sally P. Kerans</i>	<i>13th Essex</i>	<i>5/21/2025</i>
<i>Meghan K. Kilcoyne</i>	<i>12th Worcester</i>	<i>6/13/2025</i>
<i>John J. Lawn, Jr.</i>	<i>10th Middlesex</i>	<i>9/23/2025</i>
<i>David Henry Argosky LeBoeuf</i>	<i>17th Worcester</i>	<i>2/10/2025</i>
<i>Jack Patrick Lewis</i>	<i>7th Middlesex</i>	<i>4/23/2025</i>
<i>Jason M. Lewis</i>	<i>Fifth Middlesex</i>	<i>2/18/2025</i>
<i>Jay D. Livingstone</i>	<i>8th Suffolk</i>	<i>12/16/2025</i>
<i>Joan B. Lovely</i>	<i>Second Essex</i>	<i>11/20/2025</i>
<i>Hadley Luddy</i>	<i>4th Barnstable</i>	<i>7/21/2025</i>
<i>William F. MacGregor</i>	<i>10th Suffolk</i>	<i>3/31/2025</i>
<i>Adrian C. Madaro</i>	<i>1st Suffolk</i>	<i>3/5/2025</i>
<i>Thomas W. Moakley</i>	<i>Barnstable, Dukes and Nantucket</i>	<i>9/18/2025</i>

<i>Samantha Montañó</i>	<i>15th Suffolk</i>	<i>2/3/2025</i>
<i>Brian W. Murray</i>	<i>10th Worcester</i>	<i>2/4/2026</i>
<i>Jacob R. Oliveira</i>	<i>Hampden, Hampshire and Worcester</i>	<i>2/7/2025</i>
<i>Edward R. Philips</i>	<i>8th Norfolk</i>	<i>6/12/2025</i>
<i>Adrienne Pusateri Ramos</i>	<i>14th Essex</i>	<i>3/6/2025</i>
<i>Amy Mah Sangiolo</i>	<i>11th Middlesex</i>	<i>4/7/2025</i>
<i>Aaron L. Saunders</i>	<i>7th Hampden</i>	<i>4/11/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>2/19/2025</i>
<i>Greg Schwartz</i>	<i>12th Middlesex</i>	<i>3/26/2025</i>
<i>Priscila S. Sousa</i>	<i>6th Middlesex</i>	<i>2/26/2025</i>
<i>Thomas M. Stanley</i>	<i>9th Middlesex</i>	<i>1/21/2026</i>
<i>Joshua Tarsky</i>	<i>13th Norfolk</i>	<i>5/7/2025</i>
<i>Tommy Vitolo</i>	<i>15th Norfolk</i>	<i>3/4/2025</i>
<i>Susannah M. Whipps</i>	<i>2nd Franklin</i>	<i>5/14/2025</i>
<i>Christopher J. Worrell</i>	<i>5th Suffolk</i>	<i>3/5/2025</i>
<i>Hannah Bowen</i>	<i>6th Essex</i>	<i>12/23/2025</i>
<i>Lisa Field</i>	<i>3rd Bristol</i>	<i>2/2/2026</i>

HOUSE No. 1588

By Representatives Barber of Somerville and Rogers of Cambridge, a petition (accompanied by bill, House, No. 1588) of Christine P. Barber, David M. Rogers and others relative to immigration collaboration and detention agreements by law enforcement agencies. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to immigration detention and collaboration agreements.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 6 of the General Laws, as appearing in the 2022 Official Edition, is
2 hereby amended by inserting after Section 222 the following new sections:-

3 Section 223. (a) As used in this section, the following words shall have the following
4 meanings:

5 “Covered entity”, any of the following entities, or any of their agents, officers,
6 employees, agencies, or departments: the Commonwealth, any law enforcement agency, or any
7 county, city, town, district, or authority in the Commonwealth.

8 “Immigration collaboration agreement”, any contract, agreement, memorandum of
9 understanding or other arrangement, whether formal or informal, that grants federal immigration
10 enforcement authority or powers to any covered entity, including, but not limited to, an
11 agreement made pursuant to 8 U.S.C. § 1357(g).

“Immigration detention agreement”, any contract, agreement, memorandum of understanding, intergovernmental service agreement, or other arrangement, whether formal or informal, with any covered entity to arrest, detain, or house any person for the purpose of civil immigration detention.

“Law enforcement agency”, an agency in the Commonwealth charged with enforcement of state and municipal laws or with managing custody of detained or incarcerated persons in the state, including, but not limited to, municipal police departments, sheriff’s departments, campus police departments, hospital police departments, the Department of Corrections, Massachusetts State Police, the Department of Youth Services, and any council, consortium, or professional association of any of the foregoing entities.

(b) After the effective date of this Act, no covered entity may:

(1) enter into an immigration collaboration agreement or immigration detention agreement; or

(2) extend or renew an existing immigration collaboration agreement or immigration detention agreement.

(c) Any party to an existing agreement governed by this section shall terminate such agreement as soon as practicable; provided that any immigration collaboration agreement shall be terminated no later than 30 days from the effective date of this Act and any immigration detention agreement shall be terminated no later than 90 days from the effective date of this Act.

(d) Whenever the Attorney General has reason to believe that any person or entity is violating the provisions of this section, the Attorney General may bring an action in the name of

33 the Commonwealth against such person or entity to restrain such violation by temporary
34 restraining order or preliminary or permanent injunction. The action may be brought in the
35 Superior Court of the county in which such violation is occurring or is reasonably anticipated to
36 occur, or in the Superior Court of Suffolk County, at the Attorney General's election. Nothing
37 herein shall preclude a private action concerning any violation of this section against any person
38 or entity, to the extent otherwise permitted by law.